



Delaware County Commissioners Meeting December 20th 2021

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=_DafV8xVw2U
Publication Date	2021-12-20T20:45:01Z
Target Category	delaware_county

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Delaware County Commissioners Meeting Report

Meeting Date: December 20, 2021

Meeting Time: 9:01 AM

Location: Delaware County, Indiana

1. Pre-Meeting Hearings & Committee Work Sessions

The transcript contains no record of a statutory public hearing or committee work session held immediately prior to the call to order.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order at 9:01 AM on Monday, December 20, 2021.
- **Attendance:**
 - **Present:** Mr. Henry, Mr. Reagan (President), Mr. King, Mr. Burke
 - **Absent:** None explicitly noted aside from standard roll response.
 - **Presiding Officer:** Mr. Reagan (President)

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
 - **Approval of Minutes:**
 - Minutes for the December 6, 2021 Commissioners Meeting and the December 10, 2021 Executive Session were adopted.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
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4. Substantive Business & Board Action

- **00:01:05 Appointment of 911 Center Director**
 - **Sponsor / Presenter:** Barry Ritter, Interim Director of the 911 Center
 - **Deliberation Summary:** Barry Ritter reported on the conclusion of the nationwide search for a new 911 Director. The 911 Board recommended Fred Cummings, who brings over 30 years of public safety and 911 industry experience. Additionally, a new deputy director position was created, and Kyle James (currently from Madison County) was introduced to fill the management-side deputy director role starting in January.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Reagan - Yes, Henry - Yes, King - Yes).
- **00:05:19 2021 Year-End Economic Development Report**
 - **Sponsor / Presenter:** Brad Bookout, Economic Development
 - **Deliberation Summary:** Brad Bookout presented an extensive year-end report highlighting 2021 as an extraordinary year for Delaware County, featuring \$793M+ in new committed investment, 1,038 committed new jobs, and a net assessed value increase of over \$25.9M (excluding Muncie). Key projects highlighted include the Canpack aluminum can plant (\$490M investment, 425 jobs), Inox stainless steel facility (\$20M), Muncie Power Products' acquisition of the former Brevini building (\$20M), North Central Industries, Midwest Metal upgrades, Hawthorne and Meadow Forge solar farms, Yorktown's The Oliver, Optum Health, Terra Plastics, Clearline Technologies, The Wedding Factory in Albany, Dellville municipal building, Myers Performance Engineering, and the demolition of the Hilltop Hotel. Infrastructure achievements included 12.5M in sidewalks/trails, over 30 miles of TIF-funded road paving, and bridge replacements.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Information presentation; no formal board vote required.
- **00:22:22 2022 General Service Agreement with Triad Associates**

- **Sponsor / Presenter:** Angie Moyer
 - **Deliberation Summary:** Annual general service agreement mirroring previous terms, not to exceed \$15,000, with unchanged hourly rates.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Reagan - Yes, Henry - Yes, King - Yes).
- **00:22:57 Professional Service Agreement <U+2013> GAI Consultants**
 - **Sponsor / Presenter:** Angie Moyer
 - **Deliberation Summary:** Professional service contract for the replacement of Bridge 86 (a timber bridge located on 650 East at Campbell Creek near DeSoto). Contract not to exceed \$189,630 (covering preliminary engineering, right-of-way, and inspection), with construction anticipated in 2023. Community Crossings grant funds will be pursued.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
- **00:33:04 Indiana Michigan Power Street Light Service Agreement**
 - **Sponsor / Presenter:** Angie Moyer / Rob Keisling (I&M)
 - **Deliberation Summary:** Agreement to upgrade existing county street lights to LEDs at no cost to the county, yielding significant energy savings.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Reagan - Yes, Henry - Yes, King - Yes).
- **00:24:25 Settlement Agreement <U+2013> UAW Local 321**
 - **Sponsor / Presenter:** John (Legal Counsel)
 - **Deliberation Summary:** Settlement agreement to resolve and withdraw all existing grievances stemming from the previous labor contract. Signed off by the union.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
- **00:25:10 Augusta Consulting Agreements (Redevelopment Commission & Economic Development)**
 - **Sponsor / Presenter:** Brad Bookout
 - **Deliberation Summary:** Standard consulting agreements mirroring the cost of living adjustment (COLA) used by the Social Security Administration.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Reagan - Yes, Henry - Yes, King - Yes).
- **00:26:20 Title IV-D Consulting Service Contract & Cooperative Agreement**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator

- **Deliberation Summary:** Two agreements: a consulting services contract for a consultant assisting with 66.6% federal reimbursement (paid out of incentive funds at no cost to county budgets) and the annual Title IV-D cooperative agreement with the state for federal financial participation.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
- **00:27:47 Professional Tax Sale Service Agreement (2022 Delaware County Deed Sale)**
 - **Sponsor / Presenter:** Ed
 - **Deliberation Summary:** Agreement to switch tax sale vendors, saving the county approximately \$20,000 annually. The new vendor currently operates Marion County's tax sales.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
- **00:28:51 United Consulting Agreements (Bell Road Stormwater & Shell Building Properties)**
 - **Sponsor / Presenter:** Brad Bookout
 - **Deliberation Summary:** Two agreements reviewed by legal counsel: (1) Delaware County Regional Wastewater District service extension for two sites west of the former Westco shell building (~\$140,000 not to exceed) to enable future development; and (2) preliminary engineering near Albany, Indiana, to extend water and sewer utility services (~\$164,900).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Reagan - Yes, Henry - Yes, King - Yes).
- **00:30:01 Amended 2022 Holiday Schedule**
 - **Sponsor / Presenter:** Jenny / Board
 - **Deliberation Summary:** Presentation of an amended holiday schedule to correct calendar carryover dates (January 1st).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
- **00:30:29 Motorola Solutions Service Agreement (9-1-1 Communications)**
 - **Sponsor / Presenter:** Bruce Stein, Delaware County 911
 - **Deliberation Summary:** Renegotiated renewal contract following the closure of the old Justice Center on Washington Street, resulting in an approximately \$30,000 reduction due to retired equipment.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Reagan - Yes, Henry - Yes, King - Yes).
- **00:33:23 Sheriff <U+2019>s Commissary Agreement with Canteen**
 - **Sponsor / Presenter:** Tony Skinner, Delaware County Sheriff
 - **Deliberation Summary:** Three-year contract extension for jail commissary services provided by Canteen, noting reliable service with virtually no defects.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
- **00:32:08 Ordinance 2021-035: New Fund for Indiana Prosecution Attorneys Council (IPAC) Grant**
 - **Sponsor / Presenter:** Zach
 - **Deliberation Summary:** Creation of a new county fund to receive approximately \$233,000 in state funding (minus IPAC software purchases from an initial \$285,000) for a new high-tech crime unit hub county. Rules were suspended to allow immediate fund creation so the County Council can establish budget lines in a special session.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Introduced, rules suspended, and adopted by Voice Vote (Roll call votes unanimous across introduction, suspension, and adoption).
- **00:34:01 Ordinance 2021-034: Amending County Code regarding Election Districts for County Council & Commissioners**
 - **Sponsor / Presenter:** Board / Legal
 - **Deliberation Summary:** Second reading and adoption of updated election district boundaries for county council and commissioners resulting from the 2021 census. Maps and ordinance previously posted online.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Adopted by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
- **00:35:10 Requests for Proposals (RFPs): Mental Health & Substance Abuse Rehabilitation Center**
 - **Sponsor / Presenter:** John (Legal Counsel) / Commissioner King
 - **Deliberation Summary:** Approval to issue two RFPs (using a Build-Operate-Transfer [BOT] model similar to the jail construction) for the build-out and service operations of a mental health and substance abuse rehabilitation center at the South Tillotson Justice Center, funded through the American Rescue Plan (ARP). A 60-day response window was established, targeting RFP openings for February.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
- **00:39:30 911 Director Barry Ritter Contract Extension (Exhibit E)**

- **Sponsor / Presenter:** Board
 - **Deliberation Summary:** Monthly contract extension for interim 911 Director Barry Ritter past December 31st to assist incoming staff and implement 911 board staffing reports.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Reagan - Yes, Henry - Yes, King - Yes).
- **00:40:29 Reassessment Services Contract <U+2013> Professional Software Corp (PSC)**
 - **Sponsor / Presenter:** Mr. Carmichael
 - **Deliberation Summary:** Award of the four-year reassessment contract using the standard DLGF form contract. Funded by the pre-appropriate reassessment fund. PSC was recommended based on past performance (48 timely monthly updates and staying on schedule over the prior 4 years).
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Reagan - Yes, Henry - Yes, King - Yes).
- **00:41:58 Purdue Extension Office Relocation & Quarterly Report**
 - **Sponsor / Presenter:** Lauren Thompson, Purdue Extension
 - **Deliberation Summary:** Extension requested and received blessing to explore relocating their 7-11 employee/volunteer office to the third floor of the county building (former Title IX/probation/4D court space), as moving to the clerk's office was financially unfeasible. Extension also presented their quarterly report and noted upcoming office closures due to staffing emergencies.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Relocation concept approved by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
- **00:46:01 Employee Retention Bonus Program (ARP Funded)**
 - **Sponsor / Presenter:** John / Board
 - **Deliberation Summary:** Adoption of an ARP-funded employee retention bonus program providing up to \$5,000 for public safety personnel (tiered based on hire date and full/part-time status) and retention bonuses for non-public safety employees, subject to a 1-year service retention requirement. Auditor Donna noted that specific council appropriations and line-item setups (plus pension adjustments) will be required in January since no current appropriation exists.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Reagan - No, King - Yes).
- **00:54:39 Payment of Claims**
 - **Sponsor / Presenter:** Board / Auditor Donna

- **Deliberation Summary:** Presentation of claims totaling \$36,439,587.67, driven primarily by the December semiannual settlement of property taxes distributed to local taxing units.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
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5. Open Public Comment / Citizen Forum

- **00:54:45 Thomas Richards:** Spoke as an 8th-generation farmer in Washington Township regarding the proposed solar project. Expressed concern over removing productive farmland from food production, increasing grocery prices, and alleged a lack of direct notification/transparency from the Area Planning Commission regarding solar zoning and project notices.
 - **00:59:36 Ryan Richards:** Spoke regarding potential impacts of solar construction on county drainage, tile lines, agricultural land acquisition by outside corporations, and the loss of local crop production (estimating thousands of acres taken out of corn and bean production in Washington Township).
 - **01:03:26 Tammy Landis:** Washington Township resident who relocated from Tipton County; complained about solar testing agents trespassing on her land without permission, inadequate public notification regarding solar footprints, and potential runoff and drainage issues affecting neighboring fields.
 - **01:07:04 Brent Collins:** Washington Township generational farmer; raised concerns regarding watershed capacity, overloaded open ditches, subsurface tile damage, and the proximity of the solar project to a fragile local prairie ecosystem.
 - **01:09:49 David Malk:** Neighborhood representative; voiced frustration over the lack of public notice and transparency surrounding the solar project, and questioned past commentary regarding "rushing" solar ordinances through the planning process.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Sheriff Tony Skinner congratulated Commissioner Henry on his retirement from the Albany Police Department after 29 years of service.
 - Discussion held regarding upcoming County Council special sessions in January to handle ARP appropriations for bonuses and project adjustments.
 - **Adjournment:** The meeting was officially recessed/adjourned by voice vote (Roll call: Henry - Yes, Reagan - Yes, King - Yes).
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